

**FILED BY: FLUENCE ENERGY, LLC**

**\*TENTATIVE RULING:\***

Plaintiff Fluence Energy LLC brings this Motion to Compel Production of Documents in Compliance with Discovery Responses by a Date Certain and for Sanctions against Defendant Diablo Energy Storage LLC. Due to a court calendaring error, the Court has had to prepare for this motion on an expedited basis, so this tentative ruling will be more summary than it otherwise may have been. (The Court has been able to review all materials on an expedited basis.)

This Motion seeks additional responses to Request Nos. 35, 39, and 42. Diablo has claimed that further documents are not relevant, that they were already produced, that Diablo does not have these documents, or that they are unduly burdensome to produce.

To the extent relevant responsive documents were already produced, Diablo is obligated to identify those documents. That a request is answered in part by documents already produced does not relieve Diablo of the obligation of producing additional relevant documents.

To the extent that Diablo does not have responsive documents in its possession, custody, or control, it must so state.

The Court agrees that Diablo's claim of late-breaking burden are unavailing, both because the trial has been continued until July 2026 and because this discovery dispute has been going on for years. Diablo must comply with its discovery obligations.

Diablo also argues that the documents Fluence seeks are not relevant either because they relate to claims Diablo has disavowed in recent correspondence or because they go beyond the claims and defenses of the parties. If Diablo will not be pursuing previously pled claims, theories, or defenses, it must so state either by amending pleadings or in verified discovery responses—thereby foreclosing such theories at trial. Finally, while some of the other documents may be slightly more tangential, they are within the permissible scope of discovery.

For the foregoing reasons, Fluence's Motion to Compel is **granted**. The Court declines to impose sanctions.

**Courtroom Clerk's Calendar  
Add On**

**22. 9:00 AM CASE NUMBER: MSC22-00088  
CASE NAME: KALAMAS VS. JOHN MUIR HEALTH  
\*HEARING ON MOTION IN RE: COSTS RECOMPUTATION  
FILED BY:**

**\*TENTATIVE RULING:\***

After the Court ruled on Plaintiff Alicia Kalamas's Motion to Tax Costs, Defendant John Muir Health (JMH) was granted permission to supplement their request, consistent with the Court's rulings. Four issues remain to be addressed: (1) court reporter fees; (2) non-testimony time of expert witness Ryan Larkin; (3) e-discovery costs; and (4) costs of prior counsel Barkto.

Court reporter fees

In response to the Court's order, JMH removed \$1,608 as not allowable. A total amount of \$57,566.42 remains. JMH clarifies that the remainder represents: the fee for the original and one certified copy of the transcript; the Arbitration Per Diem fee; the Reporter's Certificate fee; the In-Person Per Diem fee; and the Waiting Time fee; the Electronic Package fee; the Processing fee; the Email fee; the Shipping fee; and the Delivery of Original fee; one additional certified copy of the transcripts as requested by the parties. Karmand Supp Dec ¶ 2, Ex. I. JMH misunderstands the Court's order and the law. The costs that are recoverable for transcripts are not all possible transcripts, but merely those ordered by the Court.

Code of Civil Procedure section 1033.5 permits "court reporter fees as allowed by statute." Government Code section 68086 specifies certain fees, and then the "actual cost" of providing the services of a court reporter. California Rule of Court 2.958 gives further clarification as to the fee. Several of the fees JMH has conveyed go beyond this actual fee. The Court grants the Motion to tax all but the per-diem fees and the transcript actually conveyed to the Judicial Referee. Plaintiff calculates the total remaining as \$14,920. The Court expects that, if this number does not reflect the accurate number consistent with the order, the parties will work together to figure out the proper number.

Non-Testimony Time of Expert Witness Ryan Larkin<sup>5</sup>

JMH has submitted a declaration from Ryan Larkin confirming that his non-testimony time of \$8,830.25 was for work performed after JMH's section 998 offer on July 10, 2024. See Decl. of Ryan Larkin ("Larkin Decl."), ¶¶ 4-5. Plaintiff reiterates that Mr. Larkin's time was not necessary and that the Court should use its discretion to deny this request. As Plaintiff has presented concrete objections to Mr. Larkin's time, the burden has shifted to JMH to support it. (*Jones v. Dumrichob* (1998) 63 Cal.App.4th 1258, 1266 ("If items on their face appear to be proper charges, the verified memorandum of costs is prima facie evidence of their propriety, and the burden is on the party seeking to tax costs to show they were not reasonable or necessary. 'On the other hand, if items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs.'") (*Ladas v. California State Auto. Assn.* (1993) 19 Cal. App. 4th 761, 774).") JMH has never responded to this argument, and so the Court cannot find that JMH has carried its burden. These additional costs of Expert Larkin are stricken.

E-Discovery Vendor

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<sup>5</sup> The Court acknowledges its language with respect to Dr. Alan Rosenstein could have been more precise. The Motion to Tax Costs is denied as to that expert—except insofar as Plaintiff is correct that the invoices only support \$14,150 rather than \$18,650.

Now that the Court has the Judicial Referee's order, it is evident that the order clarifies nothing. It appears to the Court that the Judicial Referee was discussing how costs of electronic discovery would be apportioned during the litigation, which is irrelevant to the issue of taxation of costs here. The dispute remains, however, as to whether these costs are recoverable under the statute. As before, the conversation focuses on the same two cases: *Science Applications Internat. Corp. v. Sup. Ct.*, 39 Cal.App.4th 1095 (1995) and *Hooked Media Group, Inc. v. Apple Inc.* (2020) 55 Cal.App.5th 323, 354.

An extensive quotation from *Science Applications* is of some assistance to the Court:

The document control and database charge, for example, represents the State's expenditure for an outside firm to keep track of the voluminous records in the case-- that is, to "Bates-stamp" the documents, input them for retrieval, maintain a document library, create databases to search for records by date, author or subject, etc. The expense is the cost of hiring assistants to help counsel organize documents and access them in discovery and at trial--in other words, the cost of a "high tech" paralegal. Because we have concluded attorney fees are not compensable, we cannot condone payment of paralegal fees. The item is not recoverable.

(*Science Applications, supra*, 39 Cal.App.4th at 1104.) *Science Applications* is obviously an outdated 30-year-old analysis, but the crux of that case and the limited discussion in *Hooked Media* is that while parties may opt to use the state-of-the-art technology and expend great resources in managing documents, the ability of a prevailing party to *shift* those costs is far more limited. Here, JMH has simply failed to explain why such extensive cost outlays were necessary in a single-plaintiff case. Even with extensive email production, it is hard to fathom why over \$1 million in e-discovery costs could be justified. Project managers on a database are more of the type of cost rejected in *Science Applications* than those accepted (such as preparing a demonstrative for trial). The Court **grants** the motion to tax all the costs other than those necessary to convert the files for production. Again Plaintiff calculates that amount as \$723.81 and the Court expects the parties to be able to adjust this number if there has been a calculation error.

#### Barkto LLP Costs

JMH adjusted the costs to remove \$5,602.80 relating to travel. Serious issues, however, remain. The Court agrees that the costs appear to be in triplicate—based on a look at the dates. Additionally, there are Westlaw and PACER fees, which are not allowable pursuant to section 1033.5(b)(2) and FedEx costs, which are not allowable pursuant to section 1033.5(b)(3). At bottom, these errors all point to the lack of any proper declaration in support of the costs. Given that such a declaration would likely have resolved these problems, and that there has been no proper attestation to the Court regarding these costs, they will be stricken.

#### Conclusion

On the basis of the representations of the parties, the following are the allowable costs remaining:

- (1) Deposition Costs – \$5,947
- (2) Ordinary Witness Fees – \$280

(3) Expert Fees (excluding Larkin non-testifying time) – \$25,650

(4) Electronic Filing Fees – \$172.05

(5) Court Reporter Fees – \$14,920

(6) Electronic Discovery-Related Third-Party Vendor Costs – \$723.81

The total allowable costs are therefore \$47,692.86.